

The Hyderabad District Officers (Change of Designation and Construction of References) Act, 1950

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State of Maharashtra - Act

The Hyderabad District Officers (Change of Designation and Construction of References) Act, 1950

MAHARASHTRA

India

The Hyderabad District Officers (Change of Designation and Construction of References) Act, 1950

Act 35 of 1950

Published on 23 November 1950

Commenced on 23 November 1950

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The Hyderabad District Officers (Change of Designation and Construction of References) Act, 1950

Hyderabad Act

No. 35 of 1950

Published in the Extraordinary, Gazette No. 68, dated the 23rd November, 1950.

An Act to provide for change of designation of and construction of references to certain District Officers.

Preamble. - Whereas it is expedient to provide for the change of designation of, and construction of references to certain District Officers;

It is hereby enacted as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the Hyderabad District Officers (Change of Designation and Construction of References) Act, 1950.

(2)

It shall extend to the whole of the [Hyderabad area of the State of Maharashtra]

[Substituted by A. O., 1956 and further amended by A. O., 1960.]

.

(3)

It shall be deemed to have come into force on the first November, 1950.

2.

Change of designation of certain District Officers.

- The designation of officers serving the Government of Hyderabad immediately before the commencement of this Act as a -

(a)

(i)

Civil Administrator,

(ii)

Deputy Civil Administrator,

(iii)

Assistant Civil Administrator,

(iv)

Taluqdar,

(v)

Additional Taluqdar, and

(vi)

Second Taluqdar -

shall be respectively altered to that of a -3

(b)

[(i) Collector,

[Substituted by Act No. XV of 1955, published in Gazette Extraordinary No. 134, dated 28.10.1955. Substituted by Act No. XV of 1955, published in Gazette Extraordinary No. 134, dated 28.10.1955.]

(ii)

Deputy Collector or Assistant Collector,

(iii)

Tahsildar,

(iv)

Collector,

(v)

Additional Collector,

(vi)

Deputy Collector or Assistant Collector :]

Provided that -

(a)

where for the same area there is a Civil Administrator and a Taluqdar, the Taluqdar shall be designated as Additional Collector;

(b)

[where for the same area there is a Deputy Civil Administrator and a Second Taluqdar, the Second Taluqdar, shall be designated as Additional Deputy Collector or Additional Assistant Collector;]

[Substituted by Act No. XV of 1955, published in Gazette Extraordinary No. 134. dated 28.10.1955.]

(c)

where for the same area there is an Assistant Civil Administrator and a Tahsildar, the Tahsildars shall be designated as Additional Tahsildar.

3.

Constitution of references in laws, regulations etc., to Civil Administrator, Deputy Civil Administrator, etc.

(1)

All Laws, Regulations, Notifications, Orders, Bye-laws and instruments, which immediately before the commencement of this Act were in force in the Hyderabad State, shall be construed as if references therein to the designations mentioned in sub-clauses (i) to (vi) of clause 2, were respectively references to the designations specified in sub-clauses (i) to (vi) of clause (b) thereof.

(2)

In order that there may not be more than one officer as Collector, Deputy Collector or Tahsildar for the same area, the Government or other competent authority may, notwithstanding the provisions of sub-section (1), appoint an officer as Additional Collector, Additional Deputy Collector and Additional Tahsildar instead of as Collector, Deputy Collector and Tahsildar respectively.

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